

TENTATIVE RULING

Case: **Peterson v. City of Red Bluff et al.**
Case No. CV2025-1674

Hearing Date: **May 26, 2026** **Department Fourteen** **9:00 a.m.**

Defendant Cody Strock’s motion for attorneys’ fees and costs is **GRANTED IN PART** in the amount of **\$20,235.00**, in attorneys’ fees and **\$674.78** in costs. (Code Civ. Proc., § 425.16, subd. (c)(1).) The Court finds that the proffered hourly rates claimed by defendant’s counsel are reasonable. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095; see also *Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1004 [“[t]he reasonable hourly rate is that prevailing in the community for similar work”]; Camy Decl., ¶ 2; Horan Decl., ¶ 2; Rose Decl., ¶ 2; Mann Decl., ¶ 3.) Additionally, defendant has established that the hours expended by defendant’s counsel in connection with the special motion to strike and the motion for attorneys’ fees and costs are reasonable. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133 [“an award of fees may include not only the fees incurred with respect to the underlying claim, but also the fees incurred in enforcing the right to mandatory fees under Code of Civil Procedure section 425.16”]; Camy Decl., ¶ 2; Horan Decl., ¶ 2; Rose Decl., ¶ 2; Mann Decl., ¶ 3; Camy Decl. ISO reply, ¶ 2; Mann Decl. ISO reply, ¶ 5.) However, the Court declines to award attorneys’ fees and costs for the hours expended by defendant’s counsel in connection with the demurrer. (Code Civ. Proc., § 425.16, subd. (c)(1); *569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 433 [“the award of fees is designed to ‘reimburs[e] the prevailing defendant for expenses incurred *in extracting* herself from a baseless lawsuit’. . . rather than to reimburse the defendant for all expenses incurred *in* the baseless lawsuit”]; *Jackson v. Yarbray* (2009) 179 Cal.App.4th 75, 92 [“only those attorney fees and costs related to the special motion to strike, not the entire action, may be recovered under section 425.16, subdivision (c)”]; *City of Industry v. City of Fillmore* (2011) 198 Cal.App.4th 191, 219.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.